

Court No. - 34

Case :- WRIT - C No. - 4594 of 2023

Petitioner :- Sujauddin @ Pappu

Respondent :- The Appellate Committee, Saharanpur Division
And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Saurabh Shyam Shamsbery,J.

Heard Sri Bidhan Chandra Rai, learned counsel for petitioner
and Sri R.K.Tripathi, Advocate holding brief of Sri Narendra
Kumar Tiwari, learned counsel for respondent nos.2 and 3.

Judgment Reserved.

Order Date :- 28.2.2023

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Reserved on 28.2.2023.

Delivered on 14.3.2023.

Court No. - 76

Case :- WRIT - C No. - 4594 of 2023

Petitioner :- Sujauddin @ Pappu

Respondent :- The Appellate Committee, Saharanpur Division And
2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Saurabh Shyam Shamsbery,J.

1. Heard Sri Bidhan Chandra Rai, learned counsel for petitioner and Sri R.K.Tripathi, Advocate holding brief of Sri Narendra Kumar Tiwari, learned counsel for respondent nos.2 and 3.

2. Petitioner has an electric connection for domestic use. A team of respondent electricity distribution corporation conducted a checking of premises of petitioner on 3.5.2019. During inspection, it was found that incoming cable was cut and electricity was being used directly by passing the meter by using a two core cable. Accordingly, a checking report was prepared. However, family members of petitioner who were present at the time of inspection, refused to sign it.

3. Respondents submitted an assessment of theft of electricity. At that stage, petitioner has approached this Court by way of filing Writ-C No.4744 of 2020, which was disposed of vide order dated 10.2.2020 with liberty to petitioner to approach Executive Engineer by filing his objection to the demand which shall be considered in accordance with law.

4. In above circumstances, petitioner submitted his objection on 19.2.2020 raising allegations against members of inspection team and that cable allegedly used in theft of electricity was not recovered. Concerned authority of respondents by an order dated 6.3.2020 after considering checking report as well as objection filed by petitioner held that a case of electricity theft/unauthorized use of energy was proved against petitioner and accordingly a demand of revenue of Rs.212840/- was determined. It has also been noted in the order that petitioner has accepted his guilt and stated that he is ready to pay penalty as well as he has not corroborated the allegations made against the officers in the objection.

5. It appears that petitioner again approached this Court by filing Writ Petition No.2425 of 2021, which was disposed of vide order dated 29.1.2021 with liberty to petitioner to file an appeal against assessment order in accordance with provisions provided under the U.P. Electricity Supply Code, 2005 (hereinafter called the 'Code, 2005) and accordingly petitioner filed an appeal.

6. In memo of appeal, the petitioner took a ground that since demand of gratification was not fulfilled, therefore, inspection team made a false inspection report. The cable wire allegedly used in the theft of electricity by passing the meter was not recovered as well as due process as prescribed under the Code, 2005 was also not followed.

7. Appellate authority vide impugned order dated 21.10.2022 partly allowed the appeal, wherein allegations of theft of electricity were confirmed, however the matter was remanded for fresh assessment for considering the payment already made as well as

the manner of calculation. Consequently, order of reassessment was passed on 19.11.2022, wherein penalty was reduced from Rs.212840/- to Rs.78078/- .

8. Learned counsel for petitioner has vehemently urged that due process for inspection has been mentioned in detail in Clause 8.1 and 8.2 of Code, 2005, which requires that report shall indicate as to whether prima-facie a case of theft of electricity can be inferred as well as list of all things seized in search shall be prepared. Counsel for petitioner further submitted that there must be proof of dishonest intention of consumer for theft of electricity, however, in the impugned order there was no averment or finding in respect of dishonest intention of petitioner as well as even prima-facie a case of theft was not made out against petitioner and also a cable allegedly used in theft was not recovered, therefore, assessment was completely illegal.

9. Learned counsel for petitioner in order to buttress his submission has placed reliance on various judgments of this Court as well as other Courts passed in **Sharda Oil Industries Pvt. Ltd., Nunaihi Vs. Appellate Authority/Superintending Engineer, U.P. State Electricity Board and Another**, 1994 SCC OnLine All, 359, Col. R.K.Nayar (Retd.) Vs. BSES Rajdhani Power Ltd. & Ors, ILR (2007) II Delhi 769, Jagdish Narayan Vs. North Delhi Power Limited & Anr, ILR (2007) II Delhi, 957, Harvinder Motors Vs. B.S.E.S. Rajdhani Power Ltd. 2006 SCC OnLine Del 1404, Orxy Fisheries Pvt.Ltd Vs. Union of India & Ors, 2010, AIR SCW 7105, Mohit Paper Mills Ltd. & Anr. Vs. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors, 2012 (2) ALJ 469 and Ashok Kumar & Ors. Vs. State of U.P. & Ors, 2008 (6) ADJ 660.

10. Learned counsel for petitioner on the basis of above referred judgments has also submitted that intention of consumer to dishonestly abstract electricity has to be proved conclusively and it is duty of authority to record reasons, but appellate authority has not given any reason, while partly allowing the appeal. A quasi judicial authority must record reasons in respect of its conclusion.

11. Learned counsel for petitioner lastly submitted that in the entire order, nowhere it is shown that procedure regarding assessment was followed and whereas requirement of statute is that, case of theft of electricity has to be established.

12. Learned counsel appearing on behalf of respondent nos.1 and 2 has submitted that during inspection it was found that incoming cable was cut and electricity was being used directly by passing the meter by using a two core cable, which was a clear case of theft of electricity. Petitioner has accepted his guilt before Assessing Officer and neither in writ petition nor during argument it was stated it was a perverse finding. Appellate authority has partly allowed the appeal filed by petitioner and assessment/penalty has been reduced from Rs.212840/- to Rs.78078/-.

13. Heard learned counsel for parties and perused the record.

14. In the demand order, Executive Engineer has specifically noted that petitioner has accepted his guilt and he was ready to pay penalty and this might be a reason that Executive Engineer has not dealt with other requirements of Electricity Act, 2003 and the Code, 2005 to return a finding that theft of electricity was conclusively proved. Even in the memo of appeal filed by petitioner, no ground has been taken that such findings was perverse. In compliance of order passed by Appellate Authority,

penalty has been drastically reduced from Rs.212840/- to Rs.78078/-.

15. Crux of argument of learned counsel for petitioner was that mandatory procedure for inspection and manner under which a theft could be proved though provided under provisions of the Act, 2003 and Code, 2005, but the same was not followed and has placed reliance on above referred judgments, which are distinguishable on facts. However, law is settled that intention of the consumer to dishonestly abstract electricity must be proved conclusively.

16. In the present case, the petitioner has accepted his guilt before the assessing officer, therefore, has not disputed that he has committed theft and has prayed for lesser penalty. In these circumstances, there was no legal requirement for assessing officer to give a finding of theft being 'conclusively proved', therefore, now petitioner cannot take ground that theft was not conclusively proved. Further petitioner has withdrawn charges levelled against the officers of Distribution Company.

17. The procedure prescribed in Code, 2005 was also substantially followed so much as after inspection, a report was prepared mentioning about cut in cable and use of 2 core wire in theft, but family members refused to sign on inspection report. The family members have not co-operated during inspection. Only deficiency, if any, was not to confiscate the wire used in theft. However, it could not be a ground for setting-aside entire proceedings ignoring that petitioner has accepted his guilt before assessing officer and it was not denied.

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18. Accordingly, there is no irregularity or illegality in the impugned order.

19. Writ petition is dismissed.

Order Date :-14.3.2023

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